

MASTER SERVICES AGREEMENT

PREAMBLE & PARTIES

This Master Services Agreement ('Agreement') is made effective as of October 1, 2026 ('Effective Date'), by and between CyberCore Systems Inc., a Delaware corporation ('Company'), and Vertex Analytics LLC, a California limited liability company ('Contractor').

1. SCOPE OF SERVICES

Contractor shall provide data engineering, infrastructure integration, and cybersecurity advisory services in accordance with sequentially executed Statements of Work ('SOW'). Contractor warrants that all work product will adhere to high industry benchmarks and comply with applicable laws.

2. PAYMENT TERMS & AUDIT

Invoices shall be rendered monthly and paid within thirty (30) calendar days. Unpaid amounts after 45 days incur a late penalty of 1.5% per month. Company retains the right to audit Contractor's billing records once annually upon ten (10) days prior written notice.

3. INTELLECTUAL PROPERTY RIGHTS

All deliverables, software modifications, inventions, and patentable developments created under this Agreement shall constitute 'work made for hire' and remain the sole exclusive property of Company. Contractor retains pre-existing tools but grants Company an irrevocable, perpetual, royalty-free license to use said tools.

4. CONFIDENTIALITY & TRADE SECRETS

The receiving party agrees to safeguard confidential data using at least the same degree of care as it uses for its own proprietary records, but not less than reasonable care. Obligations of confidentiality shall survive termination for five (5) years, while technical trade secrets shall survive in perpetuity.

5. INDEMNIFICATION & UNLIMITED DEFENSE

Contractor agrees to indemnify, defend, and hold harmless Company, its affiliates, directors, officers, and employees against any and all liabilities, losses, damages, claims, and expenses (including reasonable outside attorneys' fees) arising out of third-party IP infringement claims, negligence, or breach of warranties.

6. LIMITATION OF LIABILITY & CARVEOUTS

NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES. EXCEPT FOR INDEMNIFICATION LIABILITIES UNDER SECTION 5 AND WILLFUL BREACH OF CONFIDENTIALITY UNDER SECTION 4, AGGREGATE LIABILITY SHALL NOT EXCEED THE TOTAL FEES PAID DURING THE PRIOR 12 MONTHS.

7. NON-SOLICITATION COVENANT

During the active term and for twelve (12) months following termination, Contractor shall not solicit or hire any employee or contractor of Company without prior written permission.

8. GOVERNING LAW & JURISDICTION

This Agreement is governed by the laws of the State of Delaware. Any dispute arising out of or relating to this agreement shall be settled through binding JAMS arbitration in Wilmington, Delaware.